

Tax file number declaration

Information you provide in this declaration will allow your payer to work out how much tax to withhold from payments made to you.

 **This is not a TFN application form.**
To apply for a TFN, go to ato.gov.au/tfn

 **Terms we use**
When we say:

- payer, we mean the business or individual making payments under the pay as you go (PAYG) withholding system
- payee, we mean the individual being paid.

Who should complete this form?

You should complete this form before you start to receive payments from a new payer – for example:

- payments for work and services as an employee, company director or office holder
- payments under return-to-work schemes, labour hire arrangements or other specified payments
- benefit and compensation payments
- superannuation benefits.

 You need to provide all information requested on this form. Providing the wrong information may lead to incorrect amounts of tax being withheld from payments made to you.

-  You don't need to complete this form if you:
- are a beneficiary wanting to provide your tax file number (TFN) to the trustee of a closely held trust. For more information, visit ato.gov.au/trustsandtfnwithholding
 - are receiving superannuation benefits from a super fund and have been taken to have quoted your TFN to the trustee of the super fund
 - want to claim the seniors and pensioners tax offset by reducing the amount withheld from payments made to you. You should complete a withholding declaration form (NAT 3093)
 - want to claim a zone, overseas forces or invalid and invalid carer tax offset by reducing the amount withheld from payments made to you. You should complete a withholding declaration form (NAT 3093).

 For more information about your entitlement, visit ato.gov.au/taxoffsets

Section A: To be completed by the payee

Question 1

What is your tax file number (TFN)?

You should give your TFN to your employer only after you start work for them. Never give your TFN in a job application or over the internet.

We and your payer are authorised by the Taxation Administration Act 1953 to request your TFN. It's not an offence not to quote your TFN. However, quoting your TFN reduces the risk of administrative errors and having extra tax withheld. Your payer is required to withhold the top rate of tax from all payments made to you if you do not provide your TFN or claim an exemption from quoting your TFN.

How do you find your TFN?

You can find your TFN on any of the following:

- % your income tax notice of assessment
- % correspondence we send you
- % a payment summary your payer issues to you

If you have a tax agent, they may also be able to tell you. If you still can't find your TFN, you can phone us on 13 28 61 between 8.00am and 6.00pm, Monday to Friday.

You don't have a TFN

If you don't have a TFN and want to provide a TFN to your payer, you will need to apply for one. For more information about applying for a TFN, visit ato.gov.au/tfn

You may be able to claim an exemption from quoting your TFN.

Print X in the appropriate box if you:

- % have lodged a TFN application form or made an enquiry. You have 28 days to provide your TFN to your payer.
- % are under 18 years of age and do not earn enough to pay tax, or receive certain pensions/benefits.

Providing your TFN to your super fund

Your payer must give your TFN to the super fund they pay your contributions to. If your super fund doesn't have your TFN, you can provide it to them separately. This ensures all contributions are accepted, avoids extra tax, and helps trace accounts.

Question 2–6

Complete with your personal information (name, address, date of birth, and email address).

Question 7: On what basis are you paid?

Check with your payer if you're not sure. Select from Full-time, Part-time, Casual, Superannuation or annuity, or Labour hire.

Question 8: Are you an Australian resident for tax purposes

Generally, we consider you to be an Australian resident for tax purposes if you have always lived in Australia, now live here permanently, or are an overseas student doing a course taking more than six months.

If you are in Australia on a working holiday visa (subclass 417) or a work and holiday visa (subclass 462), place an X in the working holiday maker box.

For more information, visit ato.gov.au/whm or ato.gov.au/residency



Foreign resident tax rates are different

A higher rate of tax applies to a foreign resident's taxable income and foreign residents are not entitled to a tax-free threshold.

Question 9

Do you want to claim the tax-free threshold from this payer?

The tax-free threshold is the amount of income you can earn each financial year that is not taxed. By claiming the threshold, you reduce the amount of tax that is withheld from your pay during the year.

Answer yes if you want to claim the tax-free threshold, you are an Australian resident for tax purposes, and one of the following applies:

% you are not currently claiming the tax-free threshold from another payer

% you are currently claiming the threshold from another payer and your total income from all sources will be less than the threshold.

Answer no if none of the above applies or you are a working holiday maker.

Question 10

Do you have a HELP, VSL, FS, SSL or TSL debt?

Answer yes if you have a Higher Education Loan Program (HELP), VET Student Loan (VSL), Financial Supplement (FS), Student Start-up Loan (SSL) or Trade Support Loan (TSL) debt. Your payer will withhold additional amounts to cover compulsory repayments.

Answer no if you do not have any debt or have repaid it in full.

Section B: To be completed by the payer



Important information for payers

See the reverse side of the form (Page 6) for detailed guidelines on employer obligations.



Lodge online

Payers can lodge TFN declaration reports online if you have software that complies with ATO specifications.

For more information about lodging online, visit ato.gov.au/lodgetfnddeclaration



Sign and date the declaration

Make sure you have answered all the questions in section A, then sign and date the declaration. Give your completed declaration to your payer to complete section B.

More information

Internet

- % For general information about TFNs, tax and super, visit ato.gov.au
- % For information about applying for a TFN on the web, visit ato.gov.au/tfn
- % For information about your super, visit ato.gov.au/checkyoursuper

Useful products

- % Medicare levy variation declaration (NAT 0929)
- % Standard choice form (NAT 13080) to choose a super fund

Other forms and publications are available at ato.gov.au/onlineordering or by phoning 1300 720 092.

Our commitment to you

We are committed to providing you with accurate, consistent and clear information to help you understand your rights and entitlements and meet your obligations.

This publication was current at June 2019.

Phone

- % Payee – 13 28 61 (8.00am–6.00pm, Mon–Fri)
- % Payer – 13 28 66 (8.00am–6.00pm, Mon–Fri)
- % Translating and Interpreting Service – 13 14 50
- % National Relay Service – 13 36 77

Privacy of information

Taxation law authorises the ATO to collect information and disclose it to other government agencies. For information about your privacy, visit ato.gov.au/privacy

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Tax file number declaration

This declaration is NOT an application for a tax file number.

% Use a black or blue pen and print clearly in BLOCK LETTERS.

% Print X in the appropriate boxes.

% Read all the instructions before you complete this declaration.

Section A: To be completed by the PAYEE

1 What is your tax file number (TFN)?

2 What is your name?

Title: ☐ Mr ☐ Mrs ☐ Miss ☐ Ms

Surname or family name:

First given name:

Other given names:

3 What is your home address in Australia?

Suburb/town/locality:

State:

Postcode:

5 What is your primary e-mail address?

6 What is your date of birth?

Day	Month	Year

7 On what basis are you paid? (select only one)

☐ Full-time employment ☐ Part-time employment ☐ Labour hire ☐ Superannuation/annuity ☐ Casual employment

8 Are you: (select only one)

☐ An Australian resident for tax purposes ☐ A foreign resident for tax purposes OR ☐ A working holiday maker

9 Do you want to claim the tax-free threshold from this payer?

☐ Yes ☐ No

10 Do you have a HELP, VSL, FS, SSL or TSL debt?

☐ Yes ☐ No

DECLARATION by payee: I declare that the information I have given is true and correct.

Signature: _____ (You MUST SIGN here)

Date: ____ / ____ / ____

There are penalties for deliberately making a false or misleading statement.

Section B: To be completed by the PAYER (if you are not lodging online)

1 What is your Australian business number (ABN)?

Branch number:

3 What is your legal name or registered business name?

4 What is your business address?

6 Who is your contact person?

Phone:

DECLARATION by payer: I declare that the information I have given is true and correct.

Signature of payer: _____

Date: ____ / ____ / ____

Payer information

The following information will help you comply with your pay as you go (PAYG) withholding obligations.



Is your employee entitled to work in Australia?

It is a criminal offence to knowingly or recklessly allow someone to work where that person is from overseas and is in Australia illegally or in breach of their visa conditions.

Ensure your prospective employee has a valid visa to work in Australia before you employ them. For more information, visit homeaffairs.gov.au

Working holiday visa holders (subclass 417 & 462)

Employers of workers under these visas need to register with the ATO at ato.gov.au/whmreg
For the tax table "working holiday maker" visit ato.gov.au/taxtables

Payer obligations

If you withhold amounts from payments, the payee may give you this form with Section A completed. The information is used to determine tax to withhold based on PAYG withholding tax tables.

Where the payee has applied for a TFN, they have 28 days to provide it. You withhold at standard rates for 28 days, then top rate if not provided.

Lodging the form

You need to lodge TFN declarations with us within 14 days after the form is signed by the payee or completed by you. You need to retain a copy for your records.

% online – lodge reports using software complying specifications

% by paper – complete Section B and send original Australian Taxation Office, PO Box 9004, PENRITH NSW 2740

Provision of payee's TFN to super fund

Give your payee's TFN to their super fund on the day of contribution, or within 14 days of receiving this form.

Storing and disposing of TFN declarations

The TFN Rule issued under the Privacy Act 1988 requires secure storage. Retain copies for the current and following financial year.



Penalties

You may incur a penalty if you do not lodge TFN declarations, keep copies, or provide the TFN to the employee's super fund.